



File No.: EXP202307711

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against TELEFÓNICA MÓVILES ESPAÑA, S.A. (hereinafter, the respondent) without receiving the legally established response to their request.

The complainant requests the record of calls received on their landline and mobile phones between April 20, 2022, and May 20, 2022.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on July 18, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data decided to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any arguments they deemed appropriate within ten working days. The respondent claims to have addressed the right by denying it with justification.

According to the respondent:

Specifically, regarding your request for a copy of the incoming calls received on the landline ***PHONE.1 and on the mobile ***PHONE.2 during the period from April 20, 2022, to May 20, 2022, we must clarify that Telefónica cannot provide you with that information for the reasons outlined below: On one hand, because Telefónica does not process that information for the purpose of billing the service provided. As indicated in the regulations applicable to the provision of the service, the operator is only required to show the consumption that is outside of the contracted allowance, that is, in those cases where additional charges are generated beyond the contracted rate (...)

On the other hand, because in coherence with the above, since it is a traffic data, not billing data, Telefónica only retains the information requested by you in order to comply with the obligations imposed by the applicable regulations. Specifically, as indicated in section 6 of the Movistar Privacy Policy, this traffic and location data is retained for 12 months (...)

Due to the above, the requested traffic data is only provided to agents authorized by the aforementioned regulations when such a request is made through a judicial order. (...)

Finally, because it is a personal data linked to the person making the call, and by sharing that data with you, Telefónica could be infringing on the privacy of the person who made the call. That is, the person who made the call could accuse Telefónica of disclosing that data without having a legitimate basis for doing so. It should be noted that telecommunications legislation regulates the possibility of suppressing the identification of the calling line at the origin, so communication can even be established by telephone without identifying the caller. In this sense, since you are not requesting data related to a communication made from your terminal, but rather requesting data related to a communication received from and therefore made by a third party, your request cannot be granted..."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may present any arguments they consider appropriate. The complainant has not submitted any arguments.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

II

Preliminary Issues

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In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

The outcome of this forwarding did not allow for the satisfaction of the claims of the complainant.

Consequently, on July 18, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the complainant was notified of the admission agreement. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD.

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consider the rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication directed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, and the request will be deemed fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others, meaning that the right of access shall be granted in such a way that it does not affect third-party data.

V

Conclusion

In the case analyzed here, the complainant exercised their right of Access, receiving a response during the period of allegations of the present procedure in which the requested right of Access was denied. The respondent provides a justification that will be analyzed in this resolution.

Of the justifications that the respondent presents in the letter sent to the complainant during the allegations period in response to the exercise of their right of Access, the most relevant is that, after one year has passed, certain data is deleted in accordance with the provisions of Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications

networks, among which are the data whose access is requested by the complainant.

In this case, the complainant requests Telefónica for the record of calls received on their fixed and mobile phones between April 20, 2022, and May 20, 2022. The complaint filed with the AEPD regarding a potential infringement of data protection regulations is dated April 18, 2023, just a few days before the deletion of such personal data by the respondent, leaving no time for the Agency to take action before the retention period for the information related to the calls (12 months) expires.

Therefore, since the personal data has already been deleted by the respondent due to the passage of time and the right of access cannot be materially fulfilled, the object of the present procedure has disappeared, proceeding to its filing.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO FILE the complaint filed by A.A.A. due to the disappearance of its object.

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SECOND: NOTIFY this resolution to A.A.A. and TELEFÓNICA MÓVILES ESPAÑA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the Audiencia Nacional, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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